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The "fight" against Human Trafficking:

Insufficient, Ineffectual and Indefensible

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I. Overview

This article probes into the global issue of Human Trafficking and more particularly one of its darker elements: Sex Trafficking. The article advances the argument that human trafficking in all of it elements whether for sex or economical exploitation, is not only a human tragedy on an unimaginable scale, but a lurking global security issue that has gone under reported and unattended. The so called global "fight" against Human Trafficking, by both source and destination states and by non-state actors such as the United Nations, has been thus far insufficient, ineffectual and frankly indefensible. In the final analysis Human Trafficking is a form of slavery that is no longer tolerated by even the most backward of societies, yet is not treated with the same degree of condemnation and or with a sense of urgency.

Just to illustrate the point and bringing the problem as close to home as possible, Timothy Appleby is reporting for the Globe and Mail on February 19, 2011 under the heading: **"Mississauga man arrested in alleged human trafficking ring"** it goes on to say that "Police have made a second arrest in a sex-related human trafficking investigation encompassing an alleged network of prostitutes, some of them juveniles, in different South Western Ontario jurisdictions." The 280 words article appeared in the Toronto section of the newspaper in the lower right hand corner of page A20 under the caption: **Crime.**

The thesis of this article is that while progress has been made in recent years on the policy and legislative front to enable prevention, protection of victims and prosecution of

the perpetrators, enforcement has been largely ineffectual. The “fight” against human trafficking has not reached anywhere near the top of the international community’s political agenda and is largely classified as a law enforcement or alternatively as a human rights issue rather than a political global security issue. In addition, because of the economic factors such as the benefits of exploitation of forced labor, the distribution of huge illegal profits and the commoditization of the sex industry in the form of sex tourism, many nations are unwilling or unable to escalate the fight to eradicate human trafficking and thus are only paying lip service to it.

For the stated reasons, a globally coordinated effort to curtail if not eradicate human trafficking is probably as, if not more challenging than other global efforts to fight transnational crime. By contrast to drug trafficking or international terrorism it does not pose an immediate threat to the population at large and victims of human trafficking are seldom legal residents of the destination states and thus do not garner enough empathy from the general community.

The article begins with a series of facts and figures to acquaint the reader with the global scope and scale of the problem and proceeds to analyze its origins and the root causes that are contributing to the alarming growth in human trafficking. A few examples are given to illustrate the problem as seen from the perspective of the source countries such as South Korea and Russia. Through these examples the reader gains a greater understanding as to the socio-economic and political factors that induce the alarming growth of human trafficking from and to these countries. The article identifies and

analyzes some of the more important initiatives, particularly since the year 2000, that are aimed to contain, combat and ultimately as a goal eradicate the phenomenon. Those initiatives are mainly sponsored by the United Nation through its Global Initiative for the Fight against Trafficking (UN.GIFT), and by the United States through progressive legislation and coordinated law enforcement initiatives.

Prior to reaching its main conclusion and offer recommendations to increase the effectiveness of the fight (no quotation marks this time) against human trafficking, the article addresses the challenges and obstacles that continue to stand in the way of a sustained, coordinated and effective global effort.

For the fight against human trafficking especially for sex exploitation to become truly effective it would first require a much heightened awareness through an increased role of the mainstream media and through the global initiatives of NGOs including the United Nations. Also required are greater allocation of domestic resources, greater cooperation amongst international law enforcement agencies and stricter regulations of the use of the internet for distribution of explicit sex material and reducing its role as a marketing channel for the sex industry.

The main conclusion of the article is that the responsibility for elevating the priority of the fight against human trafficking closer to the top of the international agenda rests with the political leadership of destination countries, primarily the United States and

should not be left only to human rights organizations or other non-governmental organizations including the United Nations.

II. Human Trafficking – The Facts

The UN.GIFT offers the following facts and figures and they are included here without any further explanation:

The Numbers:

An estimated **2.5 million people** are in forced labor (including sexual exploitation) at any given time as a result of trafficking1

Of these:

o **1.4 million** – 56% - are in Asia and the Pacific

o **250,000** – 10% - are in Latin America and the Caribbean

o **230,000** – 9.2% - are in the Middle East and Northern Africa

o **130,000** – 5.2% - are in sub-Saharan countries

o **270,000** – 10.8% - are in industrialized countries

o **200,000** – 8% - are in countries in transition2

• **161 countries** are reported to be affected by human trafficking by being a source, transit or destination count3

• People are reported to be trafficked from **127 countries** to be exploited in **137 countries**, affecting every continent and every type of economy4

The Victims

The majority of trafficking victims are **between 18 and 24 years** of age5

An estimated **1.2 million children** are trafficked each year6

95% of victims experienced physical or sexual violence during trafficking (based on data from selected European countries)7

43% of victims are used for **forced commercial sexual exploitation**, of whom 98 per cent are women and girls 8

32% of victims are used for **forced economic exploitation**, of whom 56 per cent are women and girls9

Many trafficking victims have at least **middle-level education**10

The Traffickers

52% of those recruiting victims are men, 42% are women and 6% are both men and women11

In 54% of cases the recruiter was a stranger to the victim, 46% of cases the recruiter was known to victim12

The majority of suspects involved in the trafficking process are **nationals of the country where the trafficking process is occurring**13

The Profits

• Estimated global annual profits made from the exploitation of all trafficked forced labour are **US$ 31.6 billion** 14

Of this:

- o **US$ 15.5 billion –** 49% - is generated in industrialized economies
- o **US$ 9.7 billion** – 30.6% is generated in Asia and the Pacific
- o **US$ 1.3 billion** – 4.1% is generated in Latin America and the Caribbean
- o **US$ 1.6 billion –** 5% is generated in sub-Saharan Africa
- o **US$ 1.5 billion –** 4.7% is generated in the Middle East and North Africa15

Prosecutions

In 2006 there were only **5,808 prosecutions** and **3,160 convictions** throughout the world16

This means that **for every 800 people trafficked, only one person was convicted** in 2006 17

The facts and figures confirm by any standard the assertion that human trafficking is not only a human tragedy on an unimaginable scale, but a lurking global security issue that has gone under reported and unattended.

III. The roots and origins of Human Trafficking

The increase in transnational human trafficking and specifically sex trafficking is attributed to the fact that globalization has created a new economic model whereby the demand side is constantly seeking cheaper supply side resources to maximize profits. While in the manufacturing of goods this results in "outsourcing" to cheap labor sources, in the services sector it manifests itself through the importation of a cheap, vulnerable

and mostly illegal migrant workforce. When applied to the sex trade industry this results in the trafficking of humans and more specifically that of women, a heinous crime that is nothing short of human slavery perpetrated by organized crime rings in both source and destination countries.

iAbolish (www.iAbolish.com) the American Anti – Slavery Group describes the Supply and Demand equation of sex trafficking, one aspect of human trafficking as follows:

"…As hard as it is to comprehend, these women and children are considered commodities in a lucrative business. Sex trafficking rings usually focus on developing countries where it is easier to convince women and children to accept foreign jobs, or where corruption allows for illegal activity such as smuggling and kidnapping."

The human trafficked supply originates mostly in developing or under-developed nations that are characterized by dire socio-economical conditions, political unrest and cultural attitudes towards women and children. The demand side consists of many developed countries including the **United States**. Experts estimate over 10,000 women and children are trafficked into the United States every year. They are often held in debt bondage, with interest accruing on the money they "owe" for transportation or border smuggling.
In **Mexico** 5,000 children are forced into the sex industry through sex tourism, pornography and prostitution. Mexican military personnel are frequent customers. In the **Philippines,** poverty forces 75,000 children into prostitution. **Thailand** is a main destination for internationally trafficked victims coming from Burma, China and Laos.

In **Sri Lanka** 10-12,000 children are trafficked from rural to urban areas for sexual purposes. In **Iraq**, as in all war-torn countries, the dire economic conditions and heightened levels of violence have made it easier to convince families to sell their daughters under the illusion of respectable jobs away from home. In **Nigeria** most trafficked women and children come from the South-Central portion of the country. This is attributed to the particularly disadvantaged situation of women in this area, and also the local tradition of slavery. The collapse of the Soviet Union and its known economical and sociological consequences have made **Russia** the main transit country from Asia to the European Union. Russia has a significant amount of internal trafficking from smaller towns and villages to regional city centers, both for labor and sexual exploitation. Lauren McCarthy from the University of Wisconsin who has researched human trafficking in Russia and the ex-Soviet republics for three years explains that the situation differs across the post-Soviet states, she said. Some of the richer countries like **Russia and Kazakhstan** tend to be attractive destinations for people looking to migrate for employment. And many people look to leave poorer countries like **Moldova, Tajikistan, Uzbekistan and Kyrgyzstan.** The wish to migrate is then exploited by traffickers. **Moldova and Ukraine** have had particularly serious problems with the trafficking of women for sexual exploitation. **South Korea** is one of the major sources of sex trafficking and smuggling to the United States. According to the Attorney General's Office (2006), among all source countries, the highest populations of trafficking victims originated in **Korea** (23.5%) which is the primary transit country for South East Asia, followed by **Thailand** (11.7%), **Peru** (10.0%), and **Mexico** (9.6%).

As can be seen, the demand for sex trafficking originates mostly from Western democracies with above average socio-economic status and a relatively good record of human rights, whereas the supply side originates mainly from states that are either in political or economical crisis, experience social instability, are poor and have a poor record on human rights in general and cultural attitudes devaluing women's role in society in particular. In summary, suffice it to say that human trafficking is a global, transnational illicit trade originating from and trafficked to almost all nations in the world. In fact next to drug trafficking, it is considered as the fastest growing illegal trade.

IV. Global and domestic initiatives to fight human trafficking

In her publication *The Saga of Susanna* (2), the author refers to sex trafficking, for what it is: *"A contemporary form of slavery that violates women's fundamental human rights, namely the right to life, liberty and security of persons, the right not to be held in slavery or servitude and the right to be free from cruel or inhumane treatment"* This maybe equally extended to all forms of human trafficking. What then is being done and who is leading the charge in the fight against human trafficking?

In the past decade major policy and legislative progress has been made through the efforts of the U.N. GIFT and through major legislative efforts by the United States and the European Union. Yet the fight to eradicate human trafficking as a global transnational crime has not yet been proven effective for a multitude of reasons that will be enumerated later in this article. In fact it was not until the adoption of the UN Protocol

to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children of November 2000 that "trafficking in persons" has been universally recognized as a crime. Since then legislative, policy and treaty initiatives have created an international legal and policy framework to address the issue of human trafficking.

Coincidently The United States congress passed the Trafficking and Violence Protection Act of 2000. The legislation includes a balanced focus on the Prevention, Protection and Prosecution aspects of human trafficking. Through this legislation the United States has attempted to set an example for the world and demonstrate its moral leadership on matters of human trafficking. This is believed to be the only comprehensive legislation that focuses not only on the domestic aspects of the fight against human trafficking, but also includes sanctions and incentives for source countries to do their share. The U.S. has since continued to take the lead in terms of enabling a legislative framework to more effectively combat sex trafficking. On, December 19, 2003, the U.S. Congress passed the Trafficking Victims Protection Reauthorization Act of 2003 that established a private right of action for persons who are trafficked to the United States. This has become a powerful tool for the use of civil litigation as a strategy for compensating victims of trafficking in the U.S. and in so doing punishing the perpetrators of this crime not only through the criminal process but also in civil court.

The Council of Europe's Convention on Cybercrime (CETS No 185) was signed in Budapest on the 23rd of November, 2001 and came into force on the 1st of July 2004. Though the Cybercrime Convention does not directly address trafficking in

persons, it provides procedural and investigative tools to enable law enforcers around the world to cooperate to prevent and combat all types of crime committed on or through the internet, including trafficking. This is particularly so in light of the interaction between this Convention and the Convention on Action against Trafficking in Human Beings (CETS No 197).

The report issued by the Vienna Forum To Fight Human Trafficking of 13-15 February 2008 is a must read for anyone interested in any and all facets and complexities of this topic. The Vienna Forum Report (3) addresses some of the more important actions required to improve the effectiveness of the global fight against human trafficking in general and sex trafficking in particular. Amongst the many issues, the role of technology has emerged as one of the most significant factors. Ironically technology is equally a contributor to the problem as much as it may become a tool to fight the problem more effectively. As a contributor to the problem (Internet) technology facilitates communications and transactions among traffickers including financial transactions, recruitment via communications with potential victims, recruitment via advertisements, distribution of pornographic images featuring trafficked persons, and distribution and promotion of child pornography. At the same time the report recommends the use of technology to combat the problem to facilitate global investigation of trafficking, Law Enforcement cooperation, on-line training for law enforcement, security and control of documents, more effective trans-border security, ensuring the physical safety and provide assistance to victims. The report also addresses the role of the mainstream media in heightening public awareness of the scope, dimensions and the urgency of addressing the problem. This includes investigative reporting for uncovering human trafficking stories, a

more balanced and fair representation of human trafficking and sensitivity and responsibility when interviewing victims. Other major areas of debate and recommended actions included global law enforcement cooperation, the role of Parliaments, the role of the Private sector and many more.

The conference adjourned on February 15, 2008, conference participants checked out of the posh hotel and returned to their home countries. Latest statistics indicate that the velocity of human trafficking has only increased since 2008. Clearly the financial collapse of the fall of 2008, the continuing wars in Iraq and Afghanistan, the recent uprising in the Middle East and the political climate in the United States did not help create a greater momentum to combat human trafficking. So, while significant progress has been made in the last decade in terms of law enforcement reforms, legislation and increased awareness, the problem has only intensified. It would be fair to say that what has been done is insufficient, ineffectual and despite the enormous complexities, challenges and obstacles frankly indefensible.

V. Challenges and Opportunities

In his book The Natashas (1) the author offers an original look at the sex trafficking industry. Away from the dry language of legislation, the rhetoric of international conferences and human rights advocacy. The book effectively describes the cruelty, abuse and brutality toward women inside the sex trafficking industry. The progression of the sex trafficking industry is referred to as “Four Waves”. The first wave

came from South East Asia in the 1970s and was composed mostly of Thai and Philipino women. The second wave arrived from Africa in the 1980s from countries such as Ghana and Nigeria. The third wave from Latin America followed right behind from countries such as Columbia, Brazil and the Dominican Republic. The world has not just discovered that women were kidnapped, sold and raped for many years now. The point is that today sex trafficking is flourishing as never before owing mainly to the fourth wave. This wave originates from Central and East Europe and is partly attributed to the economic, ideological and moral collapse of the Soviet Union and its East European allies. In the words of the author*: "What is most disturbing is that sex trafficking is a man-made disaster that can be prevented. Yet the world continues to ignore the plight of these women and girls. The time has come to stop the traffic"*. The question remains though as to what needs to be done to respond to this challenge. The "to do" list is short, simple and self explanatory:

1. Reduce the vulnerability of victims (care & repatriation, education, initiatives to address poverty)

2. Increase the risks to traffickers (legislation, convictions, harsher punishments)

3. Lower demand for the goods and services of modern-day slaves (prosecuting users, education)

However many challenges and obstacles remain. While consensus is building up in the international community by both states and non-state actors as illustrated through the initiation and endorsement of international protocols and legislation, the battle on the

ground is still in its infancy. This article is not aiming at finding solutions to the many challenges and obstacles needed to be overcome in order to accelerate progress in a global, genuine and sustained effort to eradicate human trafficking. The article merely identifies the main challenges to be addressed. They include but not limited to the following:

1. Global coordination of law enforcement agencies in fighting transnational organized crime organizations;
2. Removal of the economic incentives of source countries to ignore the problem;
3. Consistent global anti- human trafficking criminal and civil legislation;
4. Global treaty to reinforce the fight against human trafficking;
5. Framing human trafficking as a global security issue.

Of course the main obstacle is the integration of the fight against human trafficking into the global geo-political agenda. It took 9/11 to bring the "War on Terror(ism)" to the conciseness of the world let us not wait for the equivalent to do the same for human trafficking.

V. **Conclusions**

Eleanor Kennelly Gaetan, senior coordinator for public outreach for the Department of State's Office to Monitor and Combat Trafficking in Persons, spoke to the journalists during a February 5-7, 2007 tour organized by the department's Foreign Press Center. In her speech she referred to human trafficking as a "*human rights travesty,"* and

said that: *"it is most obviously a violation of individuals' human freedom."* She said. In the *National Security Strategy* issued by the White House in March 2006, human trafficking was listed as an international security risk. Therefore, said Gaetan, "*it is something that the U.S. government and many governments around the world have made a priority to eradicate."* This is some of the strongest language used by a U.S official in describing the phenomenon. One would think that the message is being received by the destination states and transmitted to the source nations. But this is not borne by the facts. In fiscal year 2005, the U.S. government obligated about $95 million to support 266 anti-trafficking programs in 101 countries or on average $420,000 per program. Yhis is clearly insufficient. After analyzing the dry language of legislation, the rhetoric of international conferences and human rights advocacy it is clear that human trafficking has not made it to the top 10 priority list of global issues. It would appear that a "fight" against human trafficking is not likely to slow it down, let alone to stop the phenomenon altogether.

iAbolish maintains that *"trafficking would not be possible or financially attractive without the high demand for such labor. While developed countries like the United States and Japan provide a broad response to sexual slavery and sexual tourism, they are not the only countries contributing to demand. Many women and children are prostituted in developing countries to the men that live there and not trafficked across borders."* Therefore this article concludes that what is required is a global declaration of "War Against Human Trafficking". Like in any war one needs to identify the enemies, select the targets, create a battle plan, define success and monitor progress.

The targets are first and foremost the destination countries that for political, economical, financial or cultural reasons are unable or unwilling to police their borders and prosecute the perpetrators of this crime inside their borders. International cyber security and surveillance standards must be created and implemented as part of a global treaty, the U.N. must reappraise human trafficking as a global security issue rather than a domestic law enforcement or a global human rights issue and make it a Security Council priority. The well-to-do destination countries should also provide financial aid and apply political pressure on source countries. The latter must be held to acceptable human rights standards. Finally one or more of the developed countries must take a leadership position in declaring war against human trafficking and leading the charge. In the absence of a global world government it is likely that once again the United States that abolished slavery before must step up to the task and make it a political priority to eradicate human trafficking.

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